

**SHIPPER**

CONTINENT PACKAGING CORPORATION  
49/23 LUY BAN BICH STREET,  
TAN THOI HOA WARD, TAN PHU DISTRICT, HO CHI MINH CITY, VIET  
NAM

**CONSIGNEE**

TO ORDER OF CREDIT DU NORD COMEX CE  
NTRE D'AFFAIRES, 50 RUE D'ANJOU, 75  
008 PARIS, FRANCE

**NOTIFY PARTY**

EVENPLAST SAS  
4 ALLEE DES TILLEULS  
43220 RIOTORD  
FRANCE

**VESSEL**

CSCL LIMA

**VOYAGE NO.**

128S

**PLACE OF RECEIPT****PORT OF LOADING**

HOCHIMINH, VN

**PORT OF DISCHARGE**

FOS SUR MER

**PLACE OF DELIVERY**

FOS SUR MER

**GS GLOBAL LOGISTICS CO., LTD**

8th Floor, PTS Saigon Building | 118 Huynh Tan Phat, Tan  
Thuan Tay Ward, District 7, Ho Chi Minh City, Vietnam  
Tel: +84-28-3535-5672  
E-mail: info@gsglobal.vn

**JURISDICTION AND LAW CLAUSE**

"The contract evidenced by or contained in this bill of lading is governed by the law of Vietnam and any claim or dispute arising hereunder or in connection here with shall be determined by the Courts in Ho Chi Minh city. Vietnam and no other Court."

**BILL OF LADING**

**B/L NO. GSGF2204001**

| MARK AND NUMBERS          | NO. OF PACKAGES | DESCRIPTION OF GOODS         | GROSS | MEASUREMENT |
|---------------------------|-----------------|------------------------------|-------|-------------|
| SZLU9384825/40FR/21550449 | 1,345 CARTON(S) | TWO (2) X 40FR CONTAINER(S)  | .GS   | M           |
| SZLU9461270/40FR/21547464 | 1,345 CARTON(S) | S.T.C                        |       |             |
| N/M                       | -----           | PP WOVEN BAG                 |       | --          |
|                           | 2,690 CARTON(S) | TEMPERATURE TO BE SET AT +20 | .GS   | 3M          |
|                           |                 | DEGREE CELSIUS BY SHIPPER    |       |             |



SHIPPED ON BOARD : 5-APR-2022

SAY : TWO (2) X 40FR CONTAINER(S) ONLY

SHIPPER'S LOAD, STOW, COUNT AND SEAL

"THC/CSC AND ORTHER SURCHARGES AT DESTINATION ARE FOR RECEIVER'S ACCOUNT".  
ACCORDING TO THE DECLARATION OF THE CONSIGNOR

"Received by the Carrier the Goods as specified above in apparent good order and condition unless otherwise stated, to be transported to such place as agreed, authorised or permitted herein and subject to all the terms and conditions appearing on the front and reverse of this Bill of Lading to which the Merchant agrees by accepting this Bill of Lading, any local privileges and customs notwithstanding. The particulars given above as stated by the shipper and the weight, measure, quality, condition, content and value of the Goods are unknown to the Carrier. In WITNESS whereof one (1) original Bill of Lading has been signed if not otherwise stated above, the same being accomplished the other(s), if any, to be void required by the Carrier one (1) original Bill of Lading must be surrendered duly endorsed in exchange for the Goods or delivered order

|                                                |                                             |                                                                  |
|------------------------------------------------|---------------------------------------------|------------------------------------------------------------------|
| <b>FREIGHT PAYABLE AT</b>                      | <b>NUMBER OF ORIGINAL BILL</b><br>ZERO (0)  | <b>PLACE AND DATE OF ISSUE</b><br>HOCHIMINH, VIET NAM 5-APR-2022 |
| <b>Cargo Insurance through the undersigned</b> | <b>DATE LADEN ON BOARD</b><br>5-APR-2022    | <p>.....</p> <p><b>Authorized Signature</b></p>                  |
| <b>FREIGHT AMOUNT</b>                          | <b>FOR DELIVERY OF GOODS PLEASE APPY TO</b> |                                                                  |

## Bill of Lading terms & Conditions

### 1. Definition.

“Merchant” includes the shipper, the receiver, the consignor, the consignee, the holder of the Bill of Lading, the owner of the cargo and any person entitled to possession of the cargo .

### 2. Notification.

Any mention in this Bill of Lading of parties to be notified of the arrival of the cargo is solely for the information of the Carrier and failure to give such notification shall not involve the Carrier in any liability nor relieve the Merchant of any obligation hereunder.

### 3. Liability for Carriage Between Port of Loading and Port of Discharge.

(a) The International Convention for the Unification of Certain Rules of Law relating to Bills of Lading signed at Brussels on 25 August 1924 (“the Hague Rules”) as amended by the Protocol signed at Brussels on 23 February 1968 (“the Hague-Visby Rules”) and as enacted in the country of shipment shall apply to this Contract. When the Hague-Visby Rules are not enacted in the country of shipment, the corresponding legislation of The Netherlands shall apply, irrespective of whether such legislation may only regulate outbound shipments.

When there is no enactment of the Hague-Visby Rules in either the country of shipment or in the country of destination, the Hague-Visby Rules shall apply to this Contract save where the Hague Rules as enacted in the country of shipment or, if no such enactment is in place, the Hague Rules as enacted in the country of destination apply compulsorily to this Contract. The Protocol signed at Brussels on 21 December 1979 (“the SDR Protocol 1979”) shall apply where the Hague-Visby Rules apply, whether mandatorily or by this Contract.

The Carrier shall in no case be responsible for loss of or damage to cargo arising prior to loading, after discharging, or with respect to deck cargo and live animals.

(b) If the Carrier is held liable in respect of delay, consequential loss or damage other than loss of or damage to the cargo, the liability of the Carrier shall be limited to the freight for the carriage covered by this Bill of Lading, or to the limitation amount as determined in sub-clause 3(a), whichever is the lesser.

(c) The aggregate liability of the Carrier and/or any of his servants, agents or independent contractors under this Contract shall, in no circumstances, exceed the limits of liability for the total loss of the cargo under sub-clause 3(a) or, if applicable, the Additional Clause.

### 4. Law and Jurisdiction.

Disputes arising out of or in connection with this Bill of Lading shall be exclusively determined by the courts and in accordance with the law of the place where the Carrier has his principal place of business, as stated on Page 1, except as provided elsewhere herein.

### 5. The Scope of Carriage.

The intended carriage shall not be limited to the direct route but shall be deemed to include any proceeding or returning to or stopping or slowing down at or off any ports or places for any reasonable purpose connected with the carriage including bunkering, loading, discharging, or other cargo operations and maintenance of Vessel and crew.

### 6. Substitution of Vessel.

The Carrier shall be at liberty to carry the cargo or part thereof to the Port of discharge by the said or other vessel or vessels either belonging to the Carrier or others, or by other means of transport, proceeding either directly or indirectly to such port.

### 7. Transshipment.

The Carrier shall be at liberty to transship, lighter, land and store the cargo either on shore or afloat and reship and forward the same to the Port of discharge.

### 8. Liability for Pre- and On-Carriage.

When the Carrier arranges pre-carriage of the cargo from a place other than the Vessel’s Port of loading or on-carriage of the cargo to a place other than the Vessel’s Port of discharge, the Carrier shall contract as the Merchant’s Agent only and the Carrier shall not be liable for any loss or damage arising during any part of the carriage other than between the Port of loading and the Port of discharge even though the freight for the whole carriage has been collected by him.

### 9. Loading and Discharging.

- (a) Loading and discharging of the cargo shall be arranged by the Carrier or his Agent, unless otherwise agreed.
- (b) The Merchant shall, at his risk and expense, handle and/or store the cargo before loading and after discharging.
- (c) Loading and discharging may commence without prior notice.
- (d) The Merchant or his Agent shall tender the cargo when the Vessel is ready to load and as fast as the Vessel can receive including, if required by the Carrier, outside ordinary working hours notwithstanding any custom of the port. If the Merchant or his Agent fails to tender the cargo when the Vessel is ready to load or fails to load as fast as the Vessel can receive the cargo, the Carrier shall be relieved of any obligation to load such cargo, the Vessel shall be entitled to leave the port without further notice and the Merchant shall be liable to the Carrier for dead-freight and/or any overtime charges, losses, costs and expenses incurred by the Carrier.
- (e) The Merchant or his Agent shall take delivery of the cargo as fast as the Vessel can discharge including, if required by the Carrier, outside ordinary working hours notwithstanding any custom of the port. If the Merchant or his Agent fails to

shall be deemed fulfillment of the contract of carriage. Should the cargo not be applied for within a reasonable time, the Carrier may sell the same privately or by auction. If the Merchant or his Agent fails to take delivery of the cargo as fast as the Vessel can discharge, the Merchant shall be liable to the Carrier for any overtime charges, losses, costs and expenses incurred by the Carrier.

(f) The Merchant shall accept his reasonable proportion of unidentified loose cargo.

### 10. Freight, Charges, Costs, Expenses, Duties, Taxes and Fines.

(a) Freight, whether paid or not, shall be considered as fully earned upon loading and non-returnable in any event. Unless otherwise specified, freight and/or charges under this Contract are payable by the Merchant to the Carrier on demand.

Interest at Labor (or its successor) plus 2 per cent. shall run from fourteen days after the date when freight and charges are payable.

(b) The Merchant shall be liable for all costs and expenses of fumigation, gathering and sorting loose cargo and weighing onboard, repairing damage to and replacing packing due to excepted causes, and any extra handling of the cargo for any of the aforementioned reasons.

(c) The Merchant shall be liable for any dues, duties, taxes and charges which under any denomination may be levied, inter alia, on the basis of freight, weight of cargo or tonnage of the Vessel.

(d) The Merchant shall be liable for all fines, penalties, costs, expenses and losses which the Carrier, Vessel or cargo may incur through non-observance of Customs House and/or import or export regulations including but not limited to AMS and SIS-carga.

(e) The Carrier is entitled in case of incorrect declaration of contents, weights, measurements or value of the cargo to claim double the amount of freight which would have been due if such declaration had been correctly given. For the purpose of ascertaining the actual facts, the Carrier shall have the right to obtain from the Merchant the original invoice and to have the cargo inspected and its contents, weight, measurement or value verified.

### 11. Lien.

The Carrier shall have a lien on all cargo for any amount due under this contract and the costs of recovering the same and shall be entitled to sell the cargo privately or by auction to satisfy any such claims.

### 12. General Average and Salvage.

General Average shall be adjusted, stated and settled in London according to the York-Antwerp Rules 1994, or any modification thereof, in respect of all cargo, whether carried on or under deck. In the event of accident, danger, damage or disaster before or after commencement of the voyage resulting from any cause whatsoever, whether due to negligence or not, for which or for the consequence of which the Carrier is not responsible by statute, contract or otherwise, the Merchant shall contribute with the Carrier in General Average to the payment of any sacrifice, losses or expenses of a General Average nature that may be made or incurred, and shall pay salvage and special charges incurred in respect of the cargo. If a salving vessel is owned or operated by the Carrier, salvage shall be paid for as fully as if the salving vessel or vessels belonged to strangers.

### 13. Both-to-Blame Collision Clause.

If the Vessel comes into collision with another vessel as a result of the negligence of the other vessel and any act, negligence or default of the Master, Mariner, Pilot or the servants of the Carrier in the navigation or in the management of the Vessel, the Merchant will indemnify the Carrier against all loss or liability to the other or non-carrying vessel or her Owner in so far as such loss or liability represents loss of or damage to or any claim whatsoever of the owner of the cargo paid or payable by the other or non-carrying vessel or her Owner to the owner of the cargo and set-off, recouped or recovered by the other or non-carrying vessel or her Owner as part of his claim against the carrying vessel or Carrier. The foregoing provisions shall also apply where the Owner, operator or those in charge of any vessel or vessels or objects other than, or in addition to, the colliding vessels or objects are at fault in respect of a collision or contact.

### 14. Government directions, War, Epidemics, Ice, Strikes, etc.

- (a) The Master and the Carrier shall have liberty to comply with any order or directions or recommendations in connection with the carriage under this Contract given by any Government or Authority, or anybody acting or purporting to act on behalf of such Government or Authority, or having under the terms of the insurance on the Vessel the right to give such orders or directions or recommendations.
- (b) Should it appear that the performance of the carriage would expose the Vessel or any cargo onboard to risk of seizure, damage or delay, in consequence of war, warlike operations, blockade, riots, civil commotions or piracy, or any person onboard to risk of loss of life or freedom, or that any such risk has increased, the Master may discharge the cargo at the Port of loading or any other safe and convenient port.
- (c) Should it appear that epidemics; quarantine; ice; labor troubles, labor obstructions, strikes, lockouts (whether onboard or on shore); difficulties in loading or discharging would prevent the Vessel from leaving the Port of loading or reaching or entering the Port of discharge or there discharging in the

usual manner and departing there from, all of which safely and without unreasonable delay, the Master may discharge the cargo at the Port of loading or any other safe and convenient port.

(d) The discharge, under the provisions of this Clause, of any cargo shall be deemed due fulfillment of the contract of carriage.

(e) If in connection with the exercise of any liberty under this Clause any extra expenses are incurred they shall be paid by the Merchant in addition to the freight, together with return freight, if any, and a reasonable compensation for any extra services rendered to the cargo.

### 15. Defenses and Limits of Liability for the Carrier, Servants and Agents.

- (a) It is hereby expressly agreed that no servant or agent of the Carrier (which for the purpose of this Clause includes every sub-contractor of the Carrier, every sub-contractors of subcontractors and the ship-owner and/or bareboat charterer and/or charterer of the vessel) shall in any circumstances whatsoever be under any liability whatsoever to the Merchant under this Contract of carriage for any loss, damage or delay of whatsoever kind arising or resulting directly or indirectly from any act, neglect or default on his part while acting in the course or in connection with this contract of carriage.
- (b) Without prejudice to the generality of the foregoing provisions in this Clause, every exemption from liability, limitation, condition and liberty herein contained and every right, defense and immunity of whatsoever nature applicable to the Carrier or to which the Carrier is entitled, shall also be available and shall extend to protect every such servant and agent of the Carrier acting as aforesaid.
- (c) The Merchant undertakes that no claim shall be made against any servant or agent of the Carrier and, if any claim should nevertheless be made, to indemnify the Carrier against all consequences thereof.
- (d) For the purpose of all the foregoing provisions of this Clause the Carrier is or shall be deemed to be acting as agent or trustee on behalf of and for the benefit of all persons who might be his servants or agents from time to time and all such persons shall to this extent be or be deemed to be parties to this Contract of carriage.

### 16. Stowage.

- (a) The Carrier shall have the right to stow cargo by means of containers, trailers, transportable tanks, flats, pallets, or similar articles of transport used to consolidate goods.
- (b) The Carrier shall have the right to carry containers, trailers, transportable tanks and covered flats, whether stowed by the Carrier or received by him in a stowed condition from the Merchant, on or under deck without notice to the Merchant.

### 17. Shipper-Packed Containers, trailers, transportable tanks, flats and pallets.

- (a) If a container has not been filled, packed or stowed by the Carrier, the Carrier shall not be liable for any loss of or damage to its contents and the Merchant shall cover any loss or expense incurred by the Carrier, if such loss, damage or expense has been caused by:
- (i) negligent filling, packing or stowing of the container;
- (ii) the contents being unsuitable for carriage in container; or
- (iii) the unsuitability or defective condition of the container unless the container has been supplied by the Carrier and the unsuitability or defective condition would not have been apparent upon reasonable inspection at or prior to the time when the container was filled, packed or stowed.

(b) The provisions of sub-clause (i) of this Clause also apply with respect to trailers, transportable tanks, flats, boxes, crates and pallets which have not been filled, packed or stowed by the Carrier.

(c) The Carrier does not accept liability for damage due to the unsuitability or defective condition of reefer equipment or trailers supplied by the Merchant.

### 18. Return of Containers.

- (a) Containers, pallets or similar articles of transport supplied by or on behalf of the Carrier shall be returned to the Carrier in the same order and condition as handed over to the Merchant, normal wear and tear excepted, with interiors clean and within the time prescribed in the Carrier’s tariff or elsewhere.
- (b) The Merchant shall be liable to the Carrier for any loss, damage to, or delay, including demurrage and detention incurred by or sustained to containers, pallets or similar articles of transport during the period between handing over to the Merchant and return to the Carrier.

### ADDITIONAL CLAUSE

#### U.S. Trade. Period of Responsibility.

- (i) In case the Contract evidenced by this Bill of Lading is subject to the Carriage of Goods by Sea Act of the United States of America, 1936 (U.S. COGSA), then the provisions stated in said Act shall govern before loading and after discharge and throughout the entire time the cargo is in the Carrier’s custody and in which event freight shall be payable on the cargo coming into the Carrier’s custody.
- (ii) If the U.S. COGSA applies, and unless the nature and value of the cargo has been declared by the shipper before the cargo has been handed over to the Carrier and inserted in this Bill of Lading, the Carrier shall in no event be or become liable for any loss or damage to the cargo in an amount exceeding USD 500 per package or customary freight unit

Any insertion or deletion to this form must be clearly visible. In the event of any modification made to the pre-printed text of this document which is not clearly visible, the text of the original document shall apply. Doc ID #: CSC Bol Rev 01 2nd Jan 2013